

Court No. - 32

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

The learned counsel for the respondent will file a counter affidavit within four weeks.

List for admission in the 1st week of July, 2015.

Order Date :- 20.5.2015

Bhaskar

(Amar Singh Chauhan, J.)

(Tarun Agarwala, J.)

Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. As prayed by learned counsel for petitioner, two weeks' time allowed to file rejoinder affidavit.
2. List thereafter.

Order Date :- 29.11.2017

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Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Sri B.K. Singh, learned counsel for petitioner, has sought adjournment on account of illness.
2. Passed over for the day.

Order Date :- 2.1.2018

AK

Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Adjournment has been sought by Sri Bhuvnesh Kumar Singh, learned counsel for petitioner, on the ground of illness.
2. Passed over.
3. List in the next cause list.

Order Date :- 16.1.2018

PS

Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

As prayed, ten days and no more time is allowed to file
rejoinder affidavit.

Order Date :- 30.1.2018

PS

Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Siddharth,J.

1. Third consecutive adjournment has been sought by Sri Bhuvnesh Kumar Singh, learned counsel for petitioner on account of illness.
2. We are accommodating for today.
3. Put up on 15.02.2017 and it is made clear that on the next date this case shall not be adjourned at the instance of learned counsel for petitioner.

Order Date :- 13.2.2018

AK

Court No. - 34

Case :- WRIT - C No. - 29645 of 2015

Petitioner :- Mohd. Mohsin

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhuvnesh Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Shashi Kant,J.

1. Heard Sri Bhuvnesh Kumar Singh, learned counsel for the petitioner, Sri Pawan Kumar Mishra, Advocate, holding brief of Sri Pranjal Mehrotra, learned counsel for respondents 2 to 5 and perused the record.

2. This writ petition is directed against order dated 29.08.2014 passed by Executive Engineer, Electricity Distribution Division, Bijnor, permanently disconnecting electric connection granted to petitioner on 15.01.2014 after installing meter at the premises in question wherein petitioner is running Glass Factory. The aforesaid connection has been cancelled on the ground that earlier electric connection was given in the name of Mohd. Mohsin son of Shamim Ahmad, who has not given any permission to the petitioner for obtaining connection in the premises and therefore, connection is cancelled.

3. It is not the case set up by respondent that petitioner did not own or jointly own or is not in possession of said premises and is not running the factory in question. It is also not the case that petitioner is in default of payment of electricity dues or is otherwise disqualified to get electric connection in his name in the premises in dispute or under any provision of Electricity Supply Code, 2005 or Electricity Act, 2003 or rules and regulations framed thereunder. In view thereof the impugned order cannot sustain.

4. In the result, writ petition is allowed. Impugned order dated 29.08.2014 (Annexure 1 to the writ petition) is set aside.

Order Date :- 15.2.2018

KA